

Franciscus Dylan Rosario,
7624 Melody Drive
Rohnert Park, CA 94928
650.488.7510
E: soltrinox@gmail.com
Plaintiff, In Pro Per

ELECTRONICALLY
FILED
Superior Court of California,
County of San Francisco
07/23/2026
Clerk of the Court
BY: RONNIE OTERO
Deputy Clerk

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

Subhi Abdelhalim;
CSAA Insurance Exchange;
Phillips, Spallas & Angstadt LLP;
Priya D. Navaratnasingham;
Alberto Reyna;
Michael R. Chambers;
Carbone, Smith & Koyama;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631801

(Related: CGC-21-594102; CGC-25-631802)

**PLAINTIFF'S EXHIBITS A THROUGH
F IN SUPPORT OF REPLY TO
DEFENDANTS' OPPOSITION TO
MOTION FOR RECONSIDERATION**

Hearing Date: July 31, 2026

Time: 9:00 a.m.

Dept.: 301

Judge: Hon. Christine Van Aken

Matter: Motion for Reconsideration (Wong fully litigated;
Tx **79830359**)

Portal title (exact):

Plaintiffs Exhibits A through F ISO Reply Reconsideration

**AUTHORITY TO FILE AND AUTHORITY OF THE CLERK TO AC-
CEPT**

1. Plaintiff appears in propria persona under Code of Civil Procedure section 1014 and Cal. Const. art. I, sections 3 and 16.
2. This exhibit volume is lodged under Evidence Code sections 452 and 453; California Rules of Court, rules 2.256, subdivision (b), 2.257, 3.1110, subdivisions (f)(3) and (f)(4), and 3.1306; and Code of Civil Procedure sections 1008, subdivision (a), 1010, 1014, and 2015.5.

- 1 3. The Clerk's authority to accept this volume is under Government Code sections 68150 and
2 69845 and California Rules of Court, rules 2.100 through 2.111, 2.118, 2.119, 2.256, and
3 2.257. Rejection is limited to the enumerated technical grounds in California Rules of Court,
4 rules 2.118 and 2.119; this volume does not present any of those grounds.
- 5 4. The Court's authority to consider the lodged exhibits is under Evidence Code sections 452
6 and 453 and California Rules of Court, rule 3.1306.
- 7 5. This volume is timely lodged for the July 31, 2026 hearing in Case No. CGC-25-631801,
8 Department 301 (operative Tx **79830359**), as companion to Plaintiff's Request for Judicial
9 Notice ISO Reply, Reply MPA, and Exhibit Index.

11 **PURPOSE AND LODGING NOTICE**

12 This PDF is Plaintiff's combined exhibits volume (Exhibits A through F) in support of (1) Plain-
13 tiff's Request for Judicial Notice in Support of Reply to Defendants' Opposition to Motion for
14 Reconsideration, and (2) Plaintiff's Reply Memorandum of Points and Authorities in Support of
15 Motion for Reconsideration.

16 Notice is of **existence, filing, and legal effect** only (*Sosinsky v. Grant* (1992) 6 Cal.App.4th 1548,
17 1564-1569). Already-filed Tx / FSX pins remain controlling. Do not invent DocIDs for Defense
18 OPP or the July 15 continuance (Exhibits B and E).

19 Each exhibit begins at the bookmark labeled for that exhibit. Electronic bookmarks comply with
20 CRC 3.1110(f)(4).

MEMORANDUM OF COMPLIANCE (CRC 2.256 / 3.1110)

I, Franciscus Dylan Rosario, Plaintiff in pro per, state as follows for clerk and chambers compliance as to this volume:

1. **CRC 2.100 through 2.111.** This volume opens on pleading paper with court caption, case number, hearing information, and readable type consistent with California Rules of Court, rules 2.100 through 2.111.
2. **CRC 2.256(b).** This PDF is text-searchable as to generated front matter. Where an exhibit source is image-based, OCR has been or will be applied before lodging as needed for searchability.
3. **CRC 2.257.** Signature image on this volume's signature block is intended to comply with CRC 2.257 for electronic filing.
4. **CRC 3.1110(f)(3) and (f)(4).** Exhibits are identified by letter. This combined volume contains electronic bookmark entries for the volume title and for Exhibits A through F, with bookmark text matching the exhibit label.
5. **CRC 3.1306; Evid. Code sections 452 and 453.** Judicial notice is sought of existence, filing, and legal effect only (*Sosinsky*).
6. **SFTC electronic filing hygiene.** This PDF is lodged without external hyperlink dependencies, active annotations, hidden layers, or unflattened transparency intended to impair clerk review.
7. **Companion compliance.** A standalone Declaration of Compliance (CRC 2.256 / 3.1110) accompanies the July 31, 2026 reply cohort; this Memorandum of Compliance is specific to the combined exhibits volume.

EXHIBIT USAGE MAP (RJN AND REPLY MPA)

The following table identifies, for each exhibit, the controlling pin and the parts of the Request for Judicial Notice and Reply Memorandum in which the exhibit is used.

Ex.	RJN use	Reply MPA use	Description / pin
A	Item 2	Arg. I (May 12 order; “fully litigated” premise)	May 12, 2026 Dept. 301 minutes; DocID 10210043
B	Item 3	Arg. II (ripeness freeze “as of June 24”); Intro	Defendants’ Opposition (Porter Scott; July 22, 2026); no invented DocID
C	Item 4	Intro; Arg. I (operative recon papers)	Plaintiff’s Notice of Motion for Reconsideration; Tx 79830359
D	Items 5 and 6	Arg. I (<i>Wong</i> RT Vol. 11 duty-instruction record)	Wong RJN Tx 79843899 ; related FSX 79843794
E	Item 1	Arg. II (July 15 continuance moots ripeness)	July 15, 2026 continuance to July 31, 2026, Dept. 301; no invented DocID
F	Companion to Item 4	Arg. I (section 1008(a) affidavit / record showing)	Supporting declaration face pages ISO operative recon (Tx 79830359 stack)

Cross-walk (short form). Ex. A and Ex. F support Reply Argument I with Ex. C and Ex. D. Ex. B and Ex. E support Reply Argument II. RJN Items 1 through 6 are the notice anchors; this volume supplies the lodging copies identified in the Exhibit Index.

EXHIBIT CONTENTS ORDER

1. **Exhibit A** - May 12, 2026 Minutes (DocID 10210043).
2. **Exhibit B** - Defense Opposition (July 22, 2026).
3. **Exhibit C** - Operative Reconsideration Notice (Tx 79830359).
4. **Exhibit D** - Wong RJN (Tx 79843899).
5. **Exhibit E** - July 15 Continuance Cover (existence / legal effect only).

1 6. **Exhibit F** - Supporting Declaration Face (companion to Tx 79830359).

2 **Dated:** July 23, 2026

3 Respectfully submitted,

A handwritten signature in blue ink, appearing to read "F. Rosario", with a small circle at the end of the stroke.

Franciscus Dylan Rosario
Plaintiff, In Pro Per
CGC-25-631801
7624 Melody Drive
Rohnert Park, CA 94928
650.488.7510
soltrinox@gmail.com

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Case No. CGC-25-631801
Dept. 301 | Hon. Christine Van Aken
Hearing: July 31, 2026, 9:00 a.m.

EXHIBIT A

May 12, 2026 Dept. 301 Minutes
DocID 10210043
RJN Item 2 | Reply Arg. I

Lodged ISO Reply RJN and Reply MPA (existence, filing, legal effect).
Sosinsky v. Grant (1992) 6 Cal.App.4th 1548.

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

MINUTES

May 12, 2026

FRANCISCUS DYLAN ROSARIO

PLAINTIFF

VS.

SUBHI ABDELHALIM et al

DEFENDANT

Department: 301

Case Number: CGC-25-631801

Nature of Cause:

DEFENDANTS CSAA INSURANCE
EXCHANGE, MICHAEL
CHAMBERS, and CARBONE,
SMITH & KOYAMA's MOTION TO
STRIKE Amended COMPLAINT.

Present:

Judge: CHRISTINE VAN AKEN
Reporter: N/A

Clerk: WILLIAM TRUPEK
Bailiff: N/A

Appearing for Plaintiff (s):

Franciscus Dylan Rosario, 650.488.7510
soltrinox@gmail.com Plaintiff, In Pro Per

Appearing for Defendant(s):

Tyler J. O'Connell, Esq., PORTER / SCOTT
916.929.1481 toconnell@porterscott.com
Attorney for Defendants, CSAA
INSURANCE EXCHANGE; CARBONE,
SMITH & KOYAMA; and MICHAEL R.
CHAMBERS

Hearing held. ARGUED. Court having reviewed the pleadings and having heard oral argument rules as follows:

DEFENDANTS CSAA INSURANCE EXCHANGE, MICHAEL CHAMBERS, and
CARBONE, SMITH & KOYAMA's MOTION TO STRIKE Amended COMPLAINT.

Defendants' anti-SLAPP motion to strike is GRANTED. Defendants are entitled to fees and may make a separate motion or seek fees with their cost bill, but a request for a particular amount of fees for the first time on reply does not give sufficient notice.

Case Number: CGC-25-631801

Case Title: FRANCISCUS DYLAN ROSARIO VS. SUBHI ABDELHALIM ET AL

The court broadly construes the anti-SLAPP statute. (Code Civ. Proc., § 425.16, subd. (a).) Courts deciding anti-SLAPP motions use a two-step procedure. If the defendant shows that the plaintiff's claims arise from protected activity (prong one), then the burden "shifts to the plaintiff to demonstrate the merit of the claim by establishing a probability of success" (prong two). (*Baral v. Schnitt* (2016) 1 Cal.5th 376, 384.) Under prong two, the plaintiff must make a "prima facie factual showing sufficient to sustain a favorable judgment." (*Id.*, at p. 385.) In performing its analysis, the court looks to the pleadings, declarations or affidavits, and judicially noticeable material concerning the facts upon which liability is based. (Code Civ. Proc., § 425.16, subd. (b)(2).)

"[A] claim may be struck only if the speech or petitioning activity *itself* is the wrong complained of, and not just evidence of liability or a step leading to some different act for which liability is asserted." (*Park v. Board of Trustees of California State University* (2017) 2 Cal.5th 1057, 1060 [emphasis in original].) Defendants meet prong one of the anti-SLAPP statute. The First Amended Complaint ("FAC") arises from protected activity under Code of Civil Procedure, § 425.16, subd. (e)(2) ["any written or oral statement or writing made in connection with an issue under consideration or review by a...judicial body"]. "Statements made in litigation, or in connection with litigation, are protected by" the anti-SLAPP statute. (*Bergstein v. Stroock & Stroock & Lavan LLP* (2015) 236 Cal.App.4th 793, 803; *Navellier v. Sletten* (2002) 29 Cal.4th 82, 90 ["The constitutional right of petition encompasses the basic act of filing litigation."] [citation simplified]; *Ahmed v. Collect Access, LLC* (2025) 114 Cal.App.5th 1092 [equitable action to vacate a judgment triggered prong one of the anti-SLAPP statute].)

Here, plaintiff seeks to vacate a prior court judgment and recover "ancillary monetary relief" based on allegedly fraudulent litigation conduct. (FAC, 27:13-26.) The litigation conduct itself is the wrong that plaintiff complains of. The FAC specifically references protected litigation activity. (See, e.g., FAC. 10:18-19 ["CSAA Insurance Exchange, made multiple false and misleading representations to the Court..."]; FAC, 3:6-9["The defense obstructed Plaintiff's ability to present material evidence"]; FAC, 6:21-22 [Defense counsels' "conduct constituted fraud on the court and was a proximate cause of the process corruption that procured the judgment."].)

Plaintiff's citation to Code of Civil Procedure, § 425.17, subdivision (c) [commercial exemption] is inapposite. Plaintiff sues over litigation conduct, not commercial activity.

Since defendants meet prong one, the plaintiff must establish via admissible evidence a probability of prevailing on the claims (prong two). (See *Computer Xpress, Inc. v. Jackson* (2001) 93 Cal.App.4th 993, 1010.) At prong two, "a plaintiff must make a prima facie showing of facts which would, if proved at trial, support a judgment in plaintiff's favor. This standard is similar to the standard used in determining motions for nonsuit, directed verdict, or summary judgment, in that the court cannot weigh the evidence. However, the plaintiff cannot simply rely on the allegations in the complaint, but must provide the court with sufficient evidence to permit the court to determine whether there is a probability that the plaintiff will prevail on the claim." (*Id.* [citation simplified].)

Case Number: CGC-25-631801

Case Title: FRANCISCUS DYLAN ROSARIO VS. SUBHI ABDELHALIM ET AL

Plaintiff does not meet his prong two. While plaintiff attempts to characterize his claim as an equitable action to vacate a judgment based on extrinsic fraud, it is really a non-cognizable claim based on intrinsic fraud.

“The extrinsic/intrinsic fraud rule is a doctrine developed in courts of equity governing the basis for successful collateral attack on a final judgment by way of an independent proceeding. The rule is that fraud internal to the adversary proceeding, such as perjury committed during trial or error or mistake during the trial, is intrinsic and is not a basis for relief; but fraud that prevented the trial of a claim or prevented the defrauded party from getting into court at all, is extrinsic to the proceeding and is a basis for relief. Obviously, where there has been little or no judicial time invested in trial of a cause or an issue, the factor of judicial economy which otherwise weighs in favor of finality is less strong, and the equitable considerations of fair hearing and of penalizing fraud weigh more compellingly.” (*Los Angeles Airways, Inc. v. Hughes Tool Co.* (1979) 95 Cal.App.3d 1, 7.) In this case, plaintiff is seeking to vacate a judgment after a full-blown trial and is even appealing the judgment. “Extrinsic fraud usually arises when a party is denied a fair adversary hearing because he has been deliberately kept in ignorance of the action or proceeding, or in some other way fraudulently prevented from presenting his claim or defense.” (*Kulchar v. Kulchar* (1969) 1 Cal.3d 467, 471 [citation simplified].) Plaintiff complains that movants obstructed his ability to present evidence, but the issues he raises in the FAC were fully litigated in the trial court. (See RFJN Ex. E, Def’s MIL # 6; RFJN Ex. F, Def’s MIL # 8; RFJN Ex. G, Def’s MIL # 17; and RFJN Ex. H, Order re Trial Scheduling and MILs). Plaintiff presented his case, lost, and may pursue his appeal rights.

Civil Code § 47(b) [litigation privilege] does not bar a claim to vacate a claim to vacate a judgment based on extrinsic fraud. (*Rubenstein v. Rubenstein* (2000) 81 Cal.App.4th 1131, 1147 [absolute litigation privilege bars derivative tort actions (including fraud) but does not eliminate the equitable remedy of vacating a fraudulently obtained judgment].) If plaintiff merely sought to vacate the judgment, there would be no need to name movants (insurer and defense counsel). The litigation privilege, however, does bar plaintiff’s request for “ancillary monetary relief,” which is really a claim for fraud damages against defendants. “The usual formulation is that the privilege applies to any communication (1) made in judicial or quasi-judicial proceedings; (2) by litigants or other participants authorized by law; (3) to achieve the objects of the litigation; and (4) that have some connection or logical relation to the action.” (*Silberg v. Anderson* (1990) 50 Cal.3d 205, 212.) Defendants establish these elements. “Any doubt about whether the privilege applies is resolved in favor of applying it.” (*Kashian v. Harriman* (2002) 98 Cal.App.4th 892, 913.) The privilege also “extends to noncommunicative acts that are necessarily related to the communicative conduct...” (*Rusheen v. Cohen* (2006) 37 Cal.4th 1048, 1065.)

The court grants defendants’ motion to strike the FAC in its entirety. Defendants may seek fees by separate motion. (Code Civ. Proc., § 425.16, subd. (c)(1).) The court does not consider plaintiff’s various supplemental opposition briefs, which were filed without authorization, but does consider plaintiff’s requests for judicial notice.

Case Number: CGC-25-631801

Case Title: FRANCISCUS DYLAN ROSARIO VS. SUBHI ABDELHALIM ET AL

Counsel for the prevailing party is required to prepare a proposed order which repeats verbatim the substantive portion of the tentative ruling in compliance with CRC 3.1312.

Judge: Christine Van Aken; Clerk: W. Trupek; Not Reported (301/CVA)

Case Number: CGC-25-631801

Case Title: FRANCISCUS DYLAN ROSARIO VS. SUBHI ABDELHALIM ET AL

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Case No. CGC-25-631801
Dept. 301 | Hon. Christine Van Aken
Hearing: July 31, 2026, 9:00 a.m.

EXHIBIT B

Defendants' Opposition (July 22, 2026)
RJN Item 3 | Reply Arg. II

Lodged ISO Reply RJN and Reply MPA (existence, filing, legal effect).
Sosinsky v. Grant (1992) 6 Cal.App.4th 1548.

P O R T E R | S C O T T

A PROFESSIONAL CORPORATION

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Sacramento, California 95815

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Attorneys for Defendants

CSAA INSURANCE EXCHANGE; CARBONE, SMITH & KOYAMA; and MICHAEL R. CHAMBERS

SUPERIOR COURT OF CALIFORNIA, COUNTY OF SAN FRANCISCO

FRANCISCUS DYLAN ROSARIO,

Plaintiff,

v.

SUBHI ABDELHALIM;
CSAA INSURANCE EXCHANGE;
DOES 1 through 50, inclusive;

Defendants.

Case No.: CGC-25-631801

**OPPOSITION TO PLAINTIFF'S MOTION
FOR RECONSIDERATION OF MAY 12,
2026 ORDER GRANTING SPECIAL
MOTION TO STRIKE**

Date: July, 31, 2026

Time: 9:00 a.m.

Dept: 301

Complaint Filed: December 23, 2025

Amended Complaint Filed: February 25, 2026

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II. BRIEF FACTS

On June 21, 2026, Plaintiff served a copy of a Motion for Reconsideration of this Court's May 12, 2026, Order granting Defendants' Anti-SLAPP motion. That draft Motion did not have a hearing date listed in the caption. If Plaintiff subsequently served a copy of this motion with a hearing date, it was lost in the veritable cascade of documents that Plaintiff has burdened and harassed the Defense with, since the May 12, 2026 ruling on the Anti-SLAPP motion.¹

III. LEGAL STANDARD AND ARGUMENT

Under Code Civ. Proc. § 1008:

Here, Plaintiff’s moving papers completely fail to raise any “new or different facts, circumstances, or law” that would justify reconsideration of this Court’s ruling on Defendants’ Anti-SLAPP motion. In reality, Plaintiff’s motion simply seeks to relitigate the Anti-SLAPP motion (and his underlying case from 2021) and should be summarily denied.

¹ Defendant CSAA has recently filed a Motion to Have Plaintiff Deemed a Vexatious Litigant in Plaintiff Rosario's concurrently filed case: entitled: *Rosario v. CSAA, S.F. County Case No. CGC-25-631802*. That motion is set for hearing on August 26, 2026.

1 **IV. CONCLUSION**

2 Defendants respectfully request that this Court deny Plaintiff's motion for reconsideration.

3
4 Dated: July 22, 2026

PORTER SCOTT
A PROFESSIONAL CORPORATION

5
6 *Tyler J. O'Connell*

7 By _____
8 Chad S. Tapp
9 Tyler J. O'Connell
10 Attorneys for Defendants
11 CSAA INSURANCE EXCHANGE;
12 CARBONE, SMITH & KOYAMA; and
13 MICHAEL R. CHAMBERS
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PROOF OF SERVICE

At the time of service, I was over 18 years of age and not a party to this action. My business address is 2180 Harvard Street, Suite 500, Sacramento, California 95815. On July 22, 2026, I served the following document: **OPPOSITION TO PLAINTIFF'S MOTION FOR RECONSIDERATION OF MAY 12, 2026 ORDER GRANTING SPECIAL MOTION TO STRIKE**

	BY REGISTERED/CERTIFIED MAIL, RETURN RECEIPT REQUESTED: I caused to be served the above referenced document(s) by registered or certified mail, return receipt requested, with the United States Postal Service, in a sealed envelope with postage fully prepaid.
	BY PERSONAL SERVICE: I caused such document to be personally delivered to the person(s) addressed below. (1) For a party represented by an attorney, delivery was made to the attorney or at the attorney's office by leaving the documents, in an envelope or package clearly labeled to identify the attorney being served, with a receptionist or an individual in charge of the office, between the hours of nine in the morning and five in the evening. (2) For a party, delivery was made to the party or by leaving the documents at the party's residence with some person not younger than 18 years of age between the hours of eight in the morning and six in the evening.
	BY OVERNIGHT DELIVERY: I enclosed the documents in an envelope or package provided by an overnight delivery carrier and addressed to the person(s) listed below. I placed the envelope or package for collection and overnight delivery at my office or a regularly utilized drop box of the overnight delivery carrier.
X	BY ELECTRONIC TRANSMISSION: By electronically serving the document(s) to the electronic mail address set forth below on this date before 11:59 p.m. pursuant to Code of Civil Procedure section 1010.6(a)(2), (4) and (5).

Addressed as follows:

PLAINTIFF, IN PRO PER

Franciscus Dylan Rosario
7624 Melody Drive
Rohnert Park, CA 94928
soltrinox@gmail.com

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct. Executed at Sacramento, California on July 22, 2026.

Serena Blithe

Serena Blithe

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Case No. CGC-25-631801
Dept. 301 | Hon. Christine Van Aken
Hearing: July 31, 2026, 9:00 a.m.

EXHIBIT C

Operative Reconsideration Notice
Tx 79830359
RJN Item 4 | Reply Intro / Arg. I

Lodged ISO Reply RJN and Reply MPA (existence, filing, legal effect).
Sosinsky v. Grant (1992) 6 Cal.App.4th 1548.

Franciscus Dylan Rosario,
7624 Melody
Rohnert Park, CA 94928
E: soltrinox@gmail.com
Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

Subhi Abdelhalim;
CSAA Insurance Exchange;
Phillips, Spallas & Angstadt LLP;
Priya D. Navaratnasingham;
Alberto Reyna;
Michael R. Chambers;
Carbone, Smith & Koyama, LLP;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631801

(Related: CGC-21-594102)

**NOTICE OF MOTION AND
SUPPLEMENTAL MOTION FOR
RECONSIDERATION (WONG
INSTRUCTION RECORD)**

(CCP § 1008(a); Evid. Code § 452(d), 453)

Date: July 15, 2026 (placeholder)

Time: 9:00 a.m.

Dept.: 301

Judge: Hon. Christine Van Aken

**NOTICE OF MOTION AND SUPPLEMENTAL MOTION FOR RECON-
SIDERATION (WONG INSTRUCTION RECORD)**

HEARING

Date: July 15, 2026 (placeholder; confirm on reservation system) **Time:** 9:00 a.m. **Department:**
301 **Judge:** Hon. Christine Van Aken

**TO THE COURT, THE CLERK, AND ALL PARTIES AND COUNSEL
OF RECORD:**

PLEASE TAKE NOTICE that on the date and time above, or as soon thereafter as the matter may be heard, Plaintiff Franciscus Dylan Rosario will move this Court for an order reconsidering the Court's May 12, 2026 order granting Defendants' special motion to strike the First Amended Complaint under Code of Civil Procedure section 425.16, on the **new record** described below.

Because no notice of entry of the May 12, 2026 order (DocID **10210043**) has been served or posted on the register as of the date of this filing, the ten-day period under Code of Civil Procedure section **1008**, subdivision (a), has not yet commenced.

The motion is made on the following grounds:

1. **Code of Civil Procedure section 1008, subdivision (a)** (new or different facts): The **April 23, 2025 Wong instruction record** from underlying Case No. CGC-21-594102 (Reporter's Transcript, Volume 11, pp. 7-13) was **not before the Court** on May 12, 2026. Plaintiff filed a Request for Judicial Notice of that record in companion Case No. CGC-25-631802 on **June 22, 2026** (FSX Transaction ID **79843794**) and a cross-case notice in this action the same day. That record shows the trial judge prohibited the deliberating jury from considering Vehicle Code sections **22107** and **21804(a)** after the jury requested guidance on applying those sections to negligence. This record directly undermines the May 12 prong-two finding that plaintiff's issues **"were fully litigated in the trial court."**
2. **Inherent authority to reconsider** to correct legal error and prevent manifest injustice, including authority discussed in Le Francois v. Goel (2005) 35 Cal.4th 1094.
3. **Record support filed concurrently:** Plaintiff's **Memorandum of Points and Authorities; Declaration of Franciscus Dylan Rosario; Request for Judicial Notice of Wong Instruction Record with Exhibits A through C; Exhibit Index; Proposed Order; and Proposed Corrected Minute Language** (Exhibit E).
4. **Incorporation by reference** under California Rules of Court, rule 3.1113, subdivision (j), of plaintiff's prior filed opposition to the anti-SLAPP motion (DocID **10203888**) and, if filed, plaintiff's broader post-order reconsideration papers in post-order-recon-2026-05-13/.

RELIEF REQUESTED (SUMMARY)

Vacate or modify the May 12, 2026 grant of the special motion to strike; adopt corrected minute language consistent with the Wong instruction record; restore the First Amended Complaint for further proceedings consistent with law; preserve fee issues for separate noticed motion as appropriate; and grant any other relief listed in the **Proposed Order**.

Dated: June 23, 2026

Respectfully submitted,

Franciscus Dylan Rosario Plaintiff, in pro per 7624 Melody Dr., Rohnert Park, CA 94928 650.488.7510
soltrinox@gmail.com

Dated: June 22, 2026



FRANCISCUS DYLAN ROSARIO
Plaintiff, In Pro Per

7624 Melody
Rohnert Park, CA 94928
650.488.7510
E: soltrinox@gmail.com

DECLARATION OF COMPLIANCE WITH CALIFORNIA CODES, RULES, AND LOCAL PROCEDURES

Plaintiff declares under penalty of perjury under the laws of the State of California (Code Civ. Proc., § 2015.5) that the statements below are true and correct for this notice.

#	Authority	Specific requirement	This filing's compliance	Evidence
1	CRC 3.1110	Notice contents and caption	Caption block; grounds stated	Notice body
2	CRC 3.1300	Motion notice timing where applicable	Hearing date and dept listed	Caption block
3	CCP 1005(b)	Opposition and reply timing referenced where applicable	Text cites applicable deadlines	Notice body
4	CCP 1010.6; CRC 2.251	Electronic service when used	Separate POS-050 filed	POS path

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Case No. CGC-25-631801
Dept. 301 | Hon. Christine Van Aken
Hearing: July 31, 2026, 9:00 a.m.

EXHIBIT D

Wong RJN
Tx 79843899 / FSX 79843794
RJN Items 5 and 6 | Reply Arg. I

Lodged ISO Reply RJN and Reply MPA (existence, filing, legal effect).
Sosinsky v. Grant (1992) 6 Cal.App.4th 1548.

Franciscus Dylan Rosario,
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Rohnert Park, CA 94928
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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

Subhi Abdelhalim;
CSAA Insurance Exchange;
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Priya D. Navaratnasingham;
Alberto Reyna;
Michael R. Chambers;
Carbone, Smith & Koyama, LLP;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631801

(Related: CGC-21-594102)

**PLAINTIFF'S REQUEST FOR
JUDICIAL NOTICE OF WONG
INSTRUCTION RECORD
(CGC-21-594102) FOR
RECONSIDERATION**

(Evid. Code § 452(d), 453, 459; CRC 3.1306(c))

Date: July 15, 2026 (placeholder)

Time: 9:00 a.m.

Dept.: 301

Judge: Hon. Christine Van Aken

**PLAINTIFF'S REQUEST FOR JUDICIAL NOTICE OF WONG INSTRU-
TION RECORD (CGC-21-594102) FOR RECONSIDERATION**

I. INTRODUCTION AND LIMITED PURPOSE

Plaintiff requests judicial notice of specified pages from **Reporter's Transcript, Volume 11 (RT 11)**, the defense Amended Exhibit List, and the underlying complaint in Franciscus Dylan Rosario v. Subhi Abdelhalim, Case No. **CGC-21-594102**, Trial Day 11, **April 23, 2025**, before the Honorable Garrett L. Wong.

This Request supports Plaintiff's **supplemental motion for reconsideration** of the May 12, 2026 anti-SLAPP grant (DocID **10210043**). The purpose is narrow: the verbatim record shows Judge Wong **blocked the deliberating jury from considering governing Vehicle Code duty standards** after the defense placed those standards before the jury. That record undermines the May 12 prong-two finding that plaintiff's issues **"were fully litigated in the trial court."**

Plaintiff previously filed this record in companion Case No. **CGC-25-631802** on **June 22, 2026** (FSX Transaction ID **79843794**) and cross-referenced it in this action the same day. This Request lodges the same exhibits for reconsideration in **CGC-25-631801**.

Plaintiff preserves instructional-error review in appeal **A173827**. On this paper, Plaintiff asks only that the Court **notice the record** and treat it as **material to the accuracy of the May 12 fully litigated assessment**.

II. AUTHORITY

Judicial notice is authorized under Evidence Code sections **452**, subdivision (**d**); **453**; and **459**; and California Rules of Court, rule **3.1306**, subdivision (**c**).

III. ITEMS REQUESTED (CGC-21-594102)

Item 1. Jury question and Wong written prohibition

Jury Request Form No. 1 and the court's written answer (RT 11, pp. 7-13), including:

"In considering the question of whether the defendant was negligent, should we consider the provisions of Vehicle Code Sections 22107 and 21804(A)?"

and

"You may not consider Vehicle Code Sections 22107 and or 21804 subdivision A, nor will the Court instruct the Jury on those provisions."

Item 2. Wong oral explanation

"Further, I will point out, I don't think I needed to point this out, but neither Vehicle Code Section 22107 nor 21804 subdivision A were part of the evidence. They simply are not permitted to consider that as evidence in the case, period."

(RT 11, p. 8, ll. 4-9.)

Item 3. Objection and ruling

Plaintiff's contemporaneous objection and the court's overruling. (RT 11, pp. 10, 13.)

Item 4. Defense Exhibit 500 designation

Defendant's Amended Exhibit List (doc. 09506069), designating Plaintiff's Complaint as **Defense Exhibit 500**.

Item 5. Complaint statutory allegations

Complaint, Clerk's Transcript Vol. 1, pp. 40-44, pleading Vehicle Code sections **22107** and **21804(a)**.

IV. RELEVANCE TO MAY 12 ORDER

These records are directly relevant because the May 12 minutes treat the underlying verdict as proof that liability and related issues were **fully litigated**. The Wong instruction shows the **core statutory duty question was not fully submitted to the jury** when the jury expressly asked to apply Vehicle Code sections **22107** and **21804(a)** and the trial judge forbade them from doing so.

V. EXHIBITS ATTACHED

Exhibit	Description
A	RT 11, pp. 7-13 (jury question; Wong prohibition; objection; ruling)
B	Defense Amended Exhibit List (Exhibit 500 designation)
C	Complaint, CT Vol. 1, pp. 40-44 (VC 22107 / 21804(a))

Exhibits A through C are attached under California Rules of Court, rule 3.1306(c).

VI. CONCLUSION

Plaintiff respectfully requests that the Court take judicial notice of Items 1 through 5 and Exhibits A through C for the limited purpose stated above.

Dated: June 23, 2026

Franciscus Dylan Rosario Plaintiff, In Pro Per

Dated: June 22, 2026



FRANCISCUS DYLAN ROSARIO
Plaintiff, In Pro Per

7624 Melody
Rohnert Park, CA 94928
650.488.7510
E: soltrinox@gmail.com

DECLARATION OF COMPLIANCE WITH CALIFORNIA CODES, RULES, AND LOCAL PROCEDURES

Plaintiff declares under penalty of perjury under the laws of the State of California (Code Civ. Proc., § 2015.5) that the statements below are true and correct for this request for judicial notice.

#	Authority	Specific requirement	This filing's compliance	Evidence
1	Evid. Code 451-453	Proper categories; neutral descriptions	Items list sources only	Items for notice
2	CRC 3.1306(c)	Request format and item list	Numbered items with citations	RFJN body
3	CRC 3.1113	Organized authority references	TOA or inline cites as used	Body

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Case No. CGC-25-631801
Dept. 301 | Hon. Christine Van Aken
Hearing: July 31, 2026, 9:00 a.m.

EXHIBIT E

July 15, 2026 continuance of Motion for Reconsideration
to July 31, 2026, 9:00 a.m., Department 301
(no invented DocID; RJN Item 1)

Lodged ISO Reply RJN and Reply MPA (existence, filing, legal effect).
Sosinsky v. Grant (1992) 6 Cal.App.4th 1548.

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Case No. CGC-25-631801
Dept. 301 | Hon. Christine Van Aken
Hearing: July 31, 2026, 9:00 a.m.

EXHIBIT F

Supporting Declaration Face
Companion to Tx 79830359
Reply Arg. I (affidavit pin)

Lodged ISO Reply RJN and Reply MPA (existence, filing, legal effect).
Sosinsky v. Grant (1992) 6 Cal.App.4th 1548.

Franciscus Dylan Rosario,
7624 Melody
Rohnert Park, CA 94928
E: soltrinox@gmail.com
Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

Subhi Abdelhalim;
CSAA Insurance Exchange;
Phillips, Spallas & Angstadt LLP;
Priya D. Navaratnasingham;
Alberto Reyna;
Michael R. Chambers;
Carbone, Smith & Koyama, LLP;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631801

(Related: CGC-21-594102)

**DECLARATION OF FRANCISCUS
DYLAN ROSARIO IN SUPPORT OF
SUPPLEMENTAL MOTION FOR
RECONSIDERATION**

(CCP § 2015.5)

Date: July 15, 2026 (placeholder)

Time: 9:00 a.m.

Dept.: 301

Judge: Hon. Christine Van Aken

**DECLARATION OF FRANCISCUS DYLAN ROSARIO IN SUPPORT
OF SUPPLEMENTAL MOTION FOR RECONSIDERATION (WONG
INSTRUCTION RECORD)**

I, Franciscus Dylan Rosario, declare:

1. I am the Plaintiff in this action. I am over the age of 18 years. I am self-represented. I have personal knowledge of the facts stated below, except those stated on information and belief, and as to those I am informed and believe them to be true. If called as a witness, I could

testify competently to the facts below.

2. I appeared in person at oral argument on **May 12, 2026**, in **Department 301** before **Hon. Christine Van Aken**, on Defendants' special motion to strike the First Amended Complaint.
3. After that hearing, I obtained or reviewed a text copy of the court's **minutes** for **May 12, 2026** (DocID **10210043**), reflecting that the special motion to strike was **granted** and that, at prong two, the Court reasoned that plaintiff's issues "**were fully litigated in the trial court**" based on motions in limine and scheduling materials from underlying Case No. CGC-21-594102.
4. **After May 12, 2026**, I obtained the **Reporter's Transcript, Volume 11 (RT 11)**, Trial Day 11, **April 23, 2025**, from underlying Case No. CGC-21-594102, including pages **7 through 13**, reflecting the jury's deliberation question, Judge Wong's written and oral prohibition on Vehicle Code sections **22107** and **21804(a)**, my contemporaneous objection, and the court's overruling.
5. That RT 11 record was **not before this Court** on May 12, 2026, when the anti-SLAPP motion was granted.
6. On **June 22, 2026**, I filed a Request for Judicial Notice of the Wong instruction record in companion Case No. **CGC-25-631802** (FSX Transaction ID **79843794**) and a cross-case notice in **CGC-25-631801** the same day.
7. I prepared the **Request for Judicial Notice and Memorandum of Points and Authorities** filed concurrently with this declaration. Legal argument appears only in the Memorandum.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on **June 23, 2026**, at Rohnert Park, California.

Dated: June 22, 2026

